



United States
Attorney's Office
District of Maine



Residential Treatment Provider Agrees to Pay \$346,369 to Settle False Claims Act Allegations

Monday, June 2, 2025

For Immediate Release

U.S. Attorney's Office, District of Maine

The Opportunity Alliance allegedly caused false drug testing claims to be submitted and paid by Medicare and MaineCare

PORTLAND, Maine: The Opportunity Alliance, of South Portland, has agreed to pay \$346,369 to settle allegations that it violated the False Claims Act (FCA) by causing the submission of false drug testing claims.

The civil settlement agreement between The Opportunity Alliance and the United States and the State of Maine resolves allegations that The Opportunity Alliance caused false claims to be submitted to Medicare and MaineCare (Maine's Medicaid program) from July 2018 through June 2021. MaineCare is funded primarily by the federal government, which pays approximately two-thirds of all reimbursed claims.

On May 22, 2025, the United States and Maine ("Plaintiffs") filed a civil complaint against The Opportunity Alliance in the U.S. District Court in Portland. As alleged in the complaint, The Opportunity Alliance operates Morrison Place, a residential treatment program for homeless individuals who have a major mental illness and/or a substance use disorder. Between July 2018 and June 2021, The Opportunity Alliance sent misleading urine drug requisition forms to Morrison Place clients' medical providers, and then used these forms in directing a third-party urine drug testing lab ("Laboratory A") to perform an excessive number of presumptive and definitive drug tests on certain Morrison Place clients. Individual test orders were treated as "standing orders," according to which three presumptive and definitive drug tests would be ordered each week, without exception and without regard for the client's individualized treatment needs, for up to a full year. Under an agreement between The Opportunity Alliance and Laboratory A, Laboratory A would bill MaineCare and Medicare directly for any urine drug tests performed on Morrison Place clients; Laboratory A would not bill Morrison Place for any urine drug

testing-related service. Such tests were not individually approved as medically necessary, were performed without a valid order from a medical provider, and were used by The Opportunity Alliance as a means of performing residential monitoring in violation of relevant MaineCare rules.

The United States brought the complaint under the FCA, as well as Maine’s false claims statute. The FCA provides that any person who “knowingly presents, or causes to be presented, a false or fraudulent claim for payment or approval” or “knowingly makes, uses, or causes to be made or used, a false record or statement material to a false or fraudulent claim” is liable to the United States for three times the amount of damages which the United States sustains, plus a civil penalty for each FCA violation. As alleged in the complaint, by sending the misleading requisition forms to clients’ medical providers, and then using these forms in directing Laboratory A to perform a grossly excessive number of presumptive and definitive drug tests, The Opportunity Alliance knowingly caused Laboratory A to submit false or fraudulent claims for payment or approval in violation of the FCA.

The Opportunity Alliance cooperated with the investigation. Federal authorities encourage health care providers to cooperate with investigations involving the possible submission of false claims to federal programs. The claims resolved by the settlement are allegations only and there has been no determination of liability.

The U.S. Department of Health & Human Services, Office of Inspector General; the U.S. Attorney’s Office for the District of Maine; and the Office of the Maine Attorney General investigated the case. The civil action is docketed United States & State of Maine v. The Opportunity Alliance, 2:25-cv-00266-JCN (D. Me.).

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Contact

James Concannon, Assistant United States Attorney, Tel: (207) 780-3257

Updated June 2, 2025

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FALSE CLAIMS ACT

Component

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